

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B08: adverse ordinary-release route marker B08.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Ordinary Mandate Release Order After Adverse Judgment

Entered July 21, 2026

The Clerk is authorized to issue the mandate today on the ordinary no-rehearing route. The panel entered its published opinion and judgment on June 30, 2026. No timely petition for panel rehearing, petition for rehearing en banc, or combined petition was filed by the close of July 14, the fourteenth day after judgment. No motion to stay mandate is pending in this route.

Federal Rule of Appellate Procedure 41(b) schedules issuance seven days after the time for rehearing expires. The period began after July 14 and reaches its seventh calendar day on July 21. Neither a weekend adjustment nor an additional service interval changes that calculation. The Court has not shortened or extended it.

The mandate shall include a certified copy of the judgment, the published opinion, and the direction that appellant recover allowable costs. It will dismiss the evidence-sufficiency target, reverse the legal denial of qualified immunity, and remand for summary judgment in Officer Nolan Rusk's favor. The mandate does not decide what happened during the obstructed camera interval.

This route assumes no rehearing filing. It is mutually exclusive with any branch in which Mara Ellison timely seeks rehearing. The Clerk shall record issuance only in the fictional counterfactual docket identified above and shall not combine branch events.

Release Mechanics

The appellate judgment becomes effective when the mandate issues, not when district personnel later acknowledge receipt. Until today's release, the district court remained bound to await the appellate mandate before acting on the remand instruction. The Clerk shall transmit the certified materials electronically and record the exact issuance time.

An unfiled intention to seek certiorari would not delay this mandate. Rule 41(d) requires a served motion demonstrating a substantial question and good cause, followed by a court grant. No such motion appears in this ordinary path. This order expresses no view about Supreme Court filing rights after issuance and does not recall a mandate.

The district court's task is limited but concrete: enter summary judgment for Rusk on the remaining individual-capacity claim and conduct authorized closure proceedings. The appellate dismissal of factual review remains a jurisdictional boundary, while immunity supplies the dispositive legal result on assumed facts. Neither component should be rewritten as a credibility determination.

Physical exhibits and native camera files remain under existing custody and preservation rules. They need not accompany the certified electronic mandate. Any cost bill shall be processed separately without postponing effectiveness unless the Clerk enters a contrary administrative direction.

By order of Chief Judge Alder and Judges Reed and March, the mandate is released on July 21, 2026. The Clerk shall close this counterfactual appellate route after transmission is verified.